



POLICE DEPARTMENT

2/4/2015

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Jhonatan Hernandez
Tax Registry No. 935015
Police Service Area 7
Disciplinary Case No. 2013-10477

The above-named member of the Department appeared before me on July 29, 2014, charged with the following:

1. Said Police Officer Jhonatan Hernandez, while on-duty and assigned to PSA 7, on or about May 10, 2012, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Officer signed a criminal court affidavit containing inaccurate information in Bronx County.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT

The Department was represented by Pamela Naples, Esq., Department Advocate's Office, and Respondent was represented by John Tynan, Esq.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Guilty.

The Department called Sergeant Arnaldo Ramos as a witness and Respondent testified in his own behalf.

Introduction

The following facts are undisputed. The criminal case from which this Specification arose was enhanced from a state case, handled by the Bronx County District Attorney's Office (BXDA), to a federal case, handled by an Assistant at the United States Attorney's Office (AUSA).¹

After taking over the state case, and learning about a discrepancy in the evidence, the AUSA reached out to the Department concerning a possible perjury case involving Respondent. Sergeant Arnaldo Ramos conducted an investigation and discovered there was a discrepancy between Respondent's testimony at a federal suppression hearing and the Bronx County Criminal Complaint Affidavit (affidavit). The discrepancy involved the recovery of fifty-two .22 caliber live rounds of ammunition (ammunition), which was invoiced as arrest evidence. On the affidavit, Respondent indicated that he observed the ammunition under the custody and control of the defendant. [Department Exhibit 1 is the affidavit]. However, the fact is that Respondent did not recover the ammunition himself, but instead received it from the defendant's sister.

As part of his investigation, Ramos first interviewed the AUSA. From this interview he learned that before Respondent testified at the federal suppression hearing, Respondent informed the AUSA about this discrepancy. Despite this discrepancy, the AUSA permitted Respondent to testify at the suppression hearing. During cross-

¹ An "enhanced" criminal case is when the federal United States Attorney's Office takes over a state case to prosecute the matter under federal law. A case is generally enhanced because the federal charges and penalties are greater than those obtained in state court.

examination at the suppression hearing, the defendant's attorney noticed the discrepancy and brought it to the presiding judge's attention. However, Respondent was found to be credible and the judge allowed the ammunition to come into evidence allowing the case to move forward.

Ramos then conducted a Department interview with Respondent. In this interview, Respondent explained that, contrary to his statement about the recovery of the ammunition in the affidavit, the defendant's sister actually brought the ammunition to him, and that he had made a mistake on the affidavit. Respondent told Ramos that he informed the BXDA about this mistake.

A firearm was also recovered in the defendant's bedroom. Respondent was informed by the BXDA that since the firearm was recovered inside of the apartment, it was only a misdemeanor and the complaint would have to be redrafted to reflect the misdemeanor charge. However, Respondent later learned that pursuant to a federal law, the charges were enhanced and removed to federal court. As a result, the original complaint was not redrafted by the BXDA, prior to the case being transferred to the AUSA.

After Respondent's interview, Ramos interviewed the BXDA. In this interview, the BXDA told Ramos that Respondent had, in fact, indicated that there was a discrepancy in the affidavit. The BXDA told Ramos that although the BXDA was aware of the discrepancy, the BXDA did not change the affidavit because the BXDA would explain the discrepancy to the AUSA over the phone. The BXDA informed the AUSA about this discrepancy. The AUSA and a supervisor from the AUSA's office were aware of the discrepancy.

Ramos agreed that prior to the suppression hearing, the BXDA informed AUSA about the discrepancy. When Ramos asked the BXDA why the complaint/affidavit was not redrafted, the BXDA told him that "it did not matter because [the charges were] being enhanced and it was going federal, and [the BXDA] would explain it over the phone to the federal prosecutors." Respondent was not brought up on criminal charges.

FINDINGS AND ANALYSIS

Respondent stands charged with signing a criminal court affidavit containing inaccurate information concerning the recovery of fifty-two .22 caliber live rounds of ammunition. It is undisputed that Respondent affixed his signature to the affidavit. However, Respondent explained that he mistakenly signed it. As Ramos' investigation revealed, both, the AUSA and the BXDA, agreed that Respondent had attempted to correct the discrepancy before the commencement of any significant judicial proceeding.

More importantly, Ramos confirmed that the AUSA, despite having been informed by Respondent and the BXDA of the discrepancy, permitted Respondent to testify at the suppression hearing. At this point, Respondent could not have done anything further to correct his mistake. Respondent took all appropriate and necessary steps to rectify his mistake by reaching out to both the BXDA (prior to any request for him to testify) and the AUSA. Moreover, Respondent's mistake was ministerial and had no adverse impact on the actual criminal case which involved criminal possession of weapons, drugs and drug paraphernalia. Respondent was permitted to testify and the ammunition was received into evidence.

Further, if this criminal case remained under the jurisdiction of the BXDA, the BXDA would have likely redrafted the complaint and Respondent would not be in this position today. Respondent's mistake neither had any adverse effect on the criminal case, nor was he deemed as an incredible witness by the federal judge. Although this court is somewhat persuaded by Respondent's contention that it was a trivial mistake with no consequences whatsoever, the fact remains that he affixed his signature on the affidavit which contained inaccurate information; and as such, Respondent is found Guilty of the sole specification.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974).

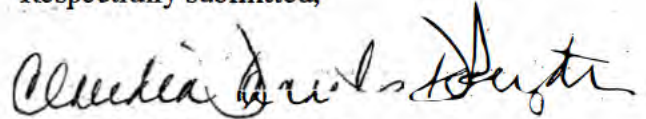
Respondent was appointed to the Department on July 1, 2004. Information from his personnel folder that was considered in making this penalty recommendation is contained in an attached confidential memorandum. Respondent has been found Guilty of affixing his signature on an affidavit containing inaccurate information.

Although Respondent is found Guilty, this Court cannot recommend a forfeiture of 15 vacation days as requested by the Assistant Department Advocate. Respondent notified the BXDA and the AUSA of the discrepancy before testifying, and took the necessary steps to correct it. It was not in Respondent's discretion to not testify at the federal suppression hearing as he was told to testify by the AUSA who had already been informed about the discrepancy by more than one source. More importantly, Respondent was found to be credible by the federal judge, and the ammunition was admitted into

evidence, allowing the case to move forward. Moreover, Respondent was not in a position to correct the affidavit once it was in the hands of the BXDA who drafted it, and later the AUSA. Respondent has made almost 300 arrests during his 10-year tenure as a police officer and he is familiar with the process involving criminal complaint affidavits.

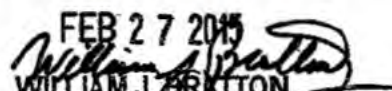
For these reasons and the reasons already discussed above in detail, this Court recommends that Respondent be reprimanded as a penalty in this matter. See Administrative Code § 14-115 [a].

Respectfully submitted,



Claudia Daniels-DePeyster
Assistant Deputy Commissioner Trials

APPROVED

FEB 27 2015

WILLIAM J. BRATTON
POLICE COMMISSIONER

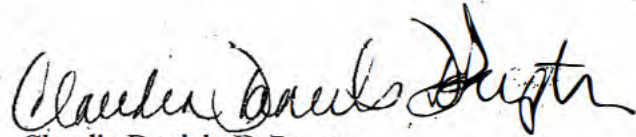
POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER JHONATAN HERNANDEZ
TAX REGISTRY NO. 935015
DISCIPLINARY CASE NO. 2013-10477

Respondent received an overall rating of 3.0 “Competent” in 2013, a 4.5 “Highly/Extremely Competent” in 2012, and a 4.0 “Highly Competent” in 2011 on his last three annual evaluations. [REDACTED]
[REDACTED]

In 2010, he received Charges for engaging in unauthorized off-duty employment and engaging in a verbal dispute. He forfeited 20 vacation days for this misconduct.

For your consideration.


Claudia Daniels-DePeyster
Assistant Deputy Commissioner – Trials